

- (b) Discuss the nature of Law and Justice in simple societies citing suitable examples. (15 marks)

As per ~~Rad~~ Radcliffe Brown, the focus of law and justice in primitive societies is not to punish the accused but maintain the social structure.

Law: Hoebel defined it as a social institution aimed to check deviance of individual behaviours

Justice: The act of adjudicating a conflict to settle the issue

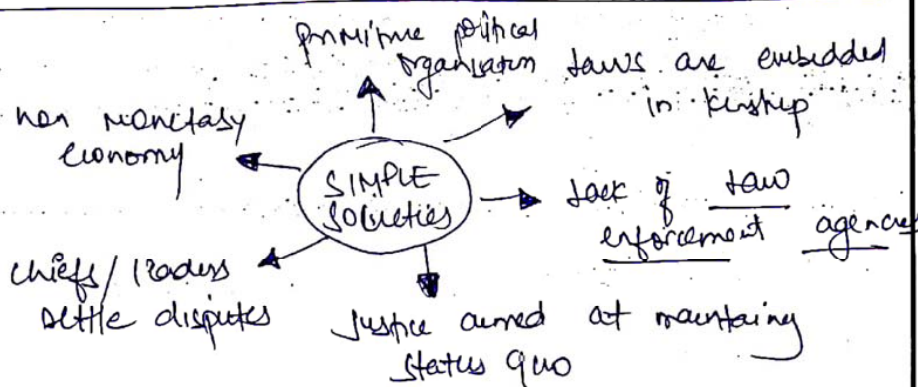


Fig: Characteristics of simple society.

Types of laws and justice

→ Radcliffe Brown replaced 'laws' with "social sanction" in primitive societies and noted that it can be

➤ NON VIOLENT

i) Avoidance of conflicting parties
e.g.: !Kung Bushmen

ii) Settlement by chief/leader
e.g.: By Melanesian Bigman

iii) Giving feasts to all parties

iv) Oath and ordeal → to instill the fear of Totemic object

e.g.: Males, Munda tribes force accused to touch iron hot rod

v) Negotiation and mutual understanding

vi) OTHER

→ Jean Briggs studied 'Eskimo song duel' where all parties gather around and the

conflictive parties say (abuse) full trial
 → Gray Pritchard studied dispute settlement
 in New societies by Leopold skin chief

⇒ VIOLENT

i) Qing warfare : eg: African tribes

ii) Retributive Justice : the victim is
 allowed to kill the accused

Thus, simple societies focus more on
quick dispute resolution without disruption
 of social structure

Marks:

Comment:

Intro:

Body:

Conclusion:

Total:

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